

26AVCV00228 26AVCV00228

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C07%2F09%2F2026

Source SHA-256: 193702b76ec0fa275a8928663eacf62bdb42c49a67af11c1b157dc0de713d8d6

Case Number: 26AVCV00228 Hearing Date: July 9, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MOISES MODRAGON and ELVIRA VENEZUELA MODRAGON,

Plaintiffs,

v.

FARMERS INSURANCE EXCHANGE,

Defendant.

Case Number 26AVCV00228

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 9, 2026

Dept. A-14

Judge William H. Forman

I. Background

The instant case arises from an alleged insurance claim denial resulting from water damage to Plaintiffs' Moises and Elvira Venezuela Modragons' ("Plaintiffs") property located at 45429 Raysack Ave, Lancaster, CA 93535 ("Property") after the roof sustained wind damage on February 14, 2025. The relevant Insurance Policy is No. 95349-02-04 ("Policy").

On February 13, 2026, Plaintiffs filed a Complaint against Defendant Farmers Insurance Exchange ("Defendant"), alleging two causes of action: (1) breach of contract; and (2) breach of the implied covenant of good faith and fair dealing.

On March 10, 2026, Defendant filed an answer.

On May 14, 2026, Defendant filed the two operative Motions to Deem RFA's Admitted to Plaintiffs.

On June 29, 2026, Plaintiffs untimely filed oppositions.[1] The oppositions were due no later than June 25, 2026.

On July 1, 2026, Defendant filed a reply.

II. Analysis

Standard for Motion to Deem Admitted – "Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties."¿(Code Civ. Proc., § 2033.010.)¿ "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared"¿(Code Civ. Proc., § 2033.250, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to deem RFA admitted does not have any meet and confer requirements.

Motions are Moot –

Defendant moves to deem the requests for admissions served upon Plaintiffs as admitted and requests monetary sanction in the sum of \$2,480.00 for both motions.

Defendant served Plaintiffs the Requests for Admissions, Set One on March 23, 2026. (Warner Decl., ¶ 3.) Responses were due on April 24, 2026, but Plaintiffs' counsel requested, and was granted, an extension to May 8, 2026. (Id.) Plaintiffs did not serve verified responses to the discovery requests until May 19, 2026, after the current motions were filed but before the hearing date.[2] (Adbolhosseini Decl., ¶ 4, Exh. A) The Court finds that the responses are in substantial compliance with the Code requirements and do not contain any objections

Accordingly, the motions are moot.

Sanctions –

“It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc. § 2033.280.)

~~~~~

Here, Plaintiffs were served with the RFAs on March 23, 2026, and even after receiving an extension, did not serve verified responses until May 19, 2026, well after the response deadline and after the motions’ filings. Defendant’s counsel bills at a rate of \$295/hour and states she spent 5 hours preparing both motions and 3 hours preparing both replies. (Reply, at p. 2; Warner Decl., ¶ 5.) The filing fees for both motions total \$120.00. (Id.) Thus, Defendant requests a sum of \$2,480.00 in sanctions against Plaintiffs and their counsel.

Plaintiffs do not address the issue of sanctions in either of their oppositions, and do not provide substantial justification or other circumstances for their failure to serve verified responses to the discovery requests before the filing of these motions that would make the imposition of sanctions unjust.

However, the Court finds 5 hours for the drafting of two similar discovery motions to be excessive. The Court awards 4 hours of drafting time to cover both motions and replies, for \$1180 in fees. The Court also awards \$120 in costs for both motions.

Accordingly, the Court GRANTS Defendant’s requests for sanctions against Plaintiffs and their counsel at the reduced sum of \$1,300, or \$650 per motion.

-----

III. Conclusion

Defendant Farmers Insurance Exchange’s Motions for Orders Deeming Matters Admitted are DENIED as moot.

Defendant Farmers Insurance Exchange’s Requests for Monetary Sanctions against Plaintiffs Moises and Elvira Venezuela Modragon and their counsel are GRANTED in the reduced sum of \$1,300, or \$650 per motion.

[1] The Court notes that while the oppositions were untimely, because Defendant filed a reply and does not seem prejudiced by the delay, the Court considers the oppositions on their merits.

[2] Although Defendant disputes the date of service and states service was conducted on May 20, 2026, based on an email from opposing counsel with the attached responses, the Court finds the dispute to be immaterial since the motion is moot no matter the date and defers to the Proof of Service date. (Warner Reply Decl., ¶ 3, Exh. A; Adbolhosseini Decl., ¶ 4, Exh. A.)